



HR & SAFETY LEADERS | VERSION 2026

# The OSHA Inspection Response Guide

## What To Do When OSHA Arrives

A field-tested playbook for HR managers and safety coordinators handling an unannounced OSHA visit. From the opening conference to the closing walkaround — what to say, what to hand over, and what not to.

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### What's Inside

- |                                   |                                 |
|-----------------------------------|---------------------------------|
| ✓ The moment OSHA knocks          | ✓ Photo & sampling procedures   |
| ✓ Opening conference protocol     | ✓ Managing the walkaround       |
| ✓ Documents to produce (and hold) | ✓ Closing conference checklist  |
| ✓ Employee interview rights       | ✓ Contest & abatement timelines |

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**Greet → Opening → Walkaround → Closing → Respond**

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OSHA INSPECTION GUIDE FOR HR & SAFETY LEADERS · EDITION 2026

# What OSHA looks for when they walk in.

A practical guide for HR managers, safety coordinators, and plant managers in the Piedmont Triad — what to have ready before, what happens during, what to do in the 15-day window after.

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## SECTION 01

# Before the Inspection — What OSHA Expects Already Done

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OSHA inspections are unannounced. By the time a compliance officer is at the front desk, every program, training record, and physical control either exists or it does not. This section is the readiness checklist every NC manufacturing, warehouse, and fleet operation should be able to clear before that morning ever happens.

## **Written Programs — the documents OSHA asks for first**

Hazard Communication (29 CFR 1910.1200), Lockout/Tagout (1910.147), Emergency Action Plan (1910.38), PPE Hazard Assessment (1910.132), Bloodborne Pathogens where applicable (1910.1030), and Respiratory Protection where applicable (1910.134). Each must be written, site-specific, reviewed annually, and signed.

## **OSHA Recordkeeping — 300, 300A, 301**

OSHA 300 log current through last work-related injury. 300A annual summary posted in a visible employee area February 1 through April 30. 301 incident reports retained for five years (29 CFR 1904).

## **Training Records — by employee, by role**

Forklift operator certification with three-year recertification cycle (1910.178(l)). LOTO authorized-employee training. HazCom training at hire and at chemical change. PPE training before assignment. Training must be documented with employee name, date, topic, and trainer signature.

## **SDS — accessible without delay**

Safety Data Sheets for every hazardous chemical on site, organized so any employee on any shift can locate the sheet for a chemical they are using within seconds (1910.1200(g)). Binder or digital system both acceptable — speed and findability are the test.

## **Physical readiness — the floor itself**

Machine guards in place and not bypassed (1910.212). Damaged ladders removed from service (1910.23). Exit routes unobstructed and marked (1910.37). Eyewash stations within 10 seconds of corrosive chemical exposure points (1910.151). Emergency lighting tested. Fire extinguishers inspected monthly and serviced annually.

## **OSHA Poster — required by law**

The current "Job Safety and Health: It's the Law" poster (OSHA 3165) must be posted in a visible employee area. Free download at [osha.gov](https://www.osha.gov).

## SECTION 02

# During the Inspection — The Five Phases

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OSHA inspections follow a structured five-phase sequence. Knowing what is happening, what is being asked, and what your team should and should not say at each phase is the difference between a clean inspection and a six-figure penalty bill.

## 1. Opening Conference

The compliance officer presents credentials and explains the scope of the inspection — programmed, complaint-driven, referral, or fatality/catastrophe. **What to do:** identify the inspection scope in writing, request a copy of any complaint, designate a single management escort, and notify the employee representative if applicable. **What not to do:** consent to a scope broader than what was presented, or allow the inspection to begin before a management representative is on-site.

## 2. Walkaround

The officer walks the facility, photographs hazards, takes notes, and may interview employees in the work area. **What to do:** escort the officer through the area identified in the opening conference, photograph everything the officer photographs (parallel record), and document each finding in real time. **What not to do:** volunteer access to areas outside the inspection scope, hide or modify conditions, or interrupt employee interviews.

## 3. Employee Interviews

Hourly employees may be interviewed privately. Management cannot attend. Interview content is confidential to OSHA. **What to do:** remind employees that they may have representation if they request it, and that they have the right to refuse the interview or end it at any time. **What not to do:** coach, instruct, or pressure employees before or after the interview.

## 4. Closing Conference

The compliance officer summarizes findings, identifies likely citations, and explains the citation process. **What to do:** request that all findings be put in writing, take detailed notes, ask which CFR standards apply to each finding, and clarify the abatement timeline being proposed. **What not to do:** admit fault, agree to penalties on the spot, or commit to corrective actions that have not been engineered.

## 5. Citation Issuance

Citations are mailed within six months of the inspection. Each citation lists the CFR standard, the proposed penalty, and the abatement deadline. The penalty may be reduced for good-faith effort, size of the business, and history. **What to do:** log the receipt date, calendar the 15-business-day contest deadline, and begin abatement documentation immediately. **What not to do:** ignore the certified mail envelope, or assume an informal conference will resolve it.

## SECTION 03

# After the Inspection — The 24-Hour and 15-Day Windows

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**Within 24 hours of the closing conference**

Write the inspection summary while it is fresh: which areas were walked, which findings were verbally identified, which employees were interviewed, and which CFR standards were cited. Photograph every flagged condition. This internal record is your most important document if a citation is later contested.

**Within 7 days**

Brief leadership in writing on the verbal findings. Begin abatement on findings that present immediate injury risk regardless of citation status. Notify your insurance carrier only if your policy specifically requires it.

**When the citation arrives — usually within 30 to 60 days**

Read every line. Each citation includes the CFR standard, the description of the alleged violation, the proposed penalty, and the abatement deadline. Verify that the cited condition matches what was actually observed.

**Within 15 business days of citation receipt**

You have three options: (1) pay the penalty and abate, (2) request an informal conference with the OSHA Area Director to negotiate the penalty and abatement, or (3) file a Notice of Contest with the Occupational Safety and Health Review Commission. Missing the 15-business-day deadline waives the right to contest.

**Throughout abatement**

Document every corrective action with photos, receipts, training records, and signed employee acknowledgments. Submit a written abatement certification by the deadline stated in the citation. Failure to certify abatement is itself a citable offense.

## SECTION 04

## The Citations HR Sees Most Often

These are the documentation-driven citations that surface most often in general industry inspections in the Piedmont Triad. They are almost always preventable with a 90-minute documentation review before OSHA arrives. Penalty figures shown are 2026 OSHA-adjusted maximums (29 CFR Part 1903), not GigLine projections.

| Standard            | Common Gap                                              | Max Penalty (2026) |
|---------------------|---------------------------------------------------------|--------------------|
| 1904.4 / 1904.32    | OSHA 300 log incomplete or 300A not posted Feb 1–Apr 30 | Up to \$16,550     |
| 1910.1200(e)(1)     | No written HazCom program or chemical inventory         | Up to \$16,550     |
| 1910.147(c)(4)      | No written LOTO procedures for energized equipment      | Up to \$16,550     |
| 1910.178(l)(4)(iii) | Forklift operator recertification past 3-year cycle     | Up to \$16,550     |
| 1910.132(d)         | No documented PPE hazard assessment                     | Up to \$16,550     |
| 1910.38(a)          | No written Emergency Action Plan (11+ employees)        | Up to \$16,550     |
| 1910.37(a)(3)       | Exit routes blocked, unmarked, or unlit                 | Up to \$16,550     |
| 1910.212(a)         | Machine guards missing or bypassed                      | Up to \$16,550     |

Source: OSHA Annual Civil Penalty Adjustments — 29 CFR Part 1903.15(d). Figures shown are maximums for "Serious" and "Other-Than-Serious" violations. Willful or repeated violations carry significantly higher maximums.

## SECTION 05

## If OSHA Shows Up — A Front-Desk Protocol

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Print this page. Post it where the front desk, security desk, or shipping office can see it. Walk through it once with whoever opens the building.

1. **Verify the credential.** Ask for the OSHA compliance officer's photo ID and business card. Record name, badge number, and area office.
2. **Page management immediately.** Do not begin the inspection until an authorized management representative is on-site.
3. **Identify the scope.** Ask why OSHA is here today — programmed, complaint, referral, fatality. If complaint-driven, request a copy of the complaint.
4. **Do not refuse entry without counsel.** Refusing entry typically requires a warrant — call the GigLine on-call line or legal counsel before that conversation.
5. **Designate one management escort.** The same person walks with the officer the entire visit and documents everything in parallel.
6. **Limit the inspection to the stated scope.** Do not volunteer access to areas outside the original scope.
7. **Photograph what they photograph.** Build a parallel record of every condition they document.

## GLOSSARY

## Terms Used in This Guide

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**CFR.** Code of Federal Regulations. OSHA general industry standards live in 29 CFR Part 1910.

**Abatement.** The corrective action that resolves a cited hazard. OSHA requires written certification of abatement by the deadline.

**Informal Conference.** A negotiation between the employer and the OSHA Area Director, held inside the 15-business-day citation contest window.

**Notice of Contest.** The formal filing that moves a citation into the OSHRC review process. Filed in writing within 15 business days of citation receipt.

**Serious Violation.** A condition with a substantial probability of death or serious physical harm. 2026 maximum penalty: \$16,550 per citation.

**Willful Violation.** A violation committed with intentional disregard for, or plain indifference to, OSHA requirements. 2026 maximum penalty: \$165,514 per citation.

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## Want this checked against your operation?

A GigLine Safety Walkthrough (\$1,200+) or Compliance Readiness Visit (\$2,000+) puts this guide into practice against your floor and your files. Call **(336) 329-8899** or visit **[giglinecompliance.com/intake](https://giglinecompliance.com/intake)**.